

Multiple Choice (10 marks)

1. In order to have an irrevocable offer under the Uniform Commercial Code, the offer must
 - (a) Be made by a merchant to a merchant.
 - (b) Be contained in a signed writing which gives assurance that the offer will be held open.
 - (c) State the period of time for which it is irrevocable.
 - (d) Not be contained in a form supplied by the offeror.
2. To prove a discriminatory classification, it must be shown that the government had intent to discriminate. Such intent can be shown by all but which of the following?
 - (a) A law that is discriminatory on its face.
 - (b) A discriminatory application of a facially neutral law.
 - (c) A discriminatory effect.
 - (d) A discriminatory motive.
3. Which of the following will not terminate a contract by operation of law?
 - (a) Death or insanity of a party.
 - (b) Partial performance
 - (c) Destruction of the subject matter of contract.
 - (d) Supervening illegality
4. If a regulation does amount to a taking, then what must the government do?
 - (a) Pay just compensation for the property
 - (b) Terminate the regulation and pay damages that occurred while regulation was in effect
 - (c) Pay double damages if not addressed in 30 days.
 - (d) a or b
5. The most likely contract to be classified under the Uniform Commercial Code (UCC) is a contract for
 - (a) A common carrier delivering a new computer.
 - (b) Crops and timber to be severed from the property next summer.
 - (c) The purchase of a commercial property building.
 - (d) The sale of an intangible asset.

True / False (10 marks)

Answer True or False

6. True or False: A bill of attainder is a legislative act that inflicts punishment on individuals without a trial.
7. True or False: The hierarchy of U.S. law is defined as the U.S. Constitution, treaties and federal statutes, executive agreements, and state law.
8. True or False: The testimony is hearsay but admissible as a dying declaration since it pertains to the circumstances of the victim's death.
9. True or False: Termination of a parent's custody rights and welfare benefits only requires prior notice and an opportunity to respond.
10. True or False: Solicitation does not require an agreement between multiple parties to be considered a crime.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the implications of a Defendant's unique circumstances, such as being deaf, on their standard of care in negligence cases within the context of constitutional law.
12. Discuss the types of facts that are appropriate for judicial notice in a trial, and critically analyze why facts asserted by individual political organizations do not qualify.

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